

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2026CUCR059659: PERLA MAGENO vs SUB ZERO FRANCHISING, INC, A UTAH CORPORATION;

**07/08/2026 in Department 21
Motion to Vacate Default Judgment**

Tentative Rulings. Parties and counsel appearing for oral argument should address the tentative decision. Parties may submit on the tentative decision by email, with a copy to all other parties in the matter, to courtroom21@ventura.courts.ca.gov before 8:00 a.m. on the day set for the hearing, with a subject line that includes “SUBMISSION ON TENTATIVE”, Case Number, Title and Party. If fewer than all parties submit on the tentative, the hearing will proceed, and the tentative ruling is subject to change. The clerk cannot advise if you should still appear or not. The decision of whether to appear for a hearing is to be made by the parties and their counsel. (Dept. 21 Rules & Procedures, p. 4, § II.I.)

The following is a statement of the Court’s tentative ruling. The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Motion by Defendant Sub Zero Franchising, Inc. (“Defendant”) to vacate default (*unopposed*).

Tentative Ruling: Defendant’s motion to vacate default is GRANTED. The motion is timely, and Defendant has shown that the default was the result of a reasonable mistake. Defendant is entitled to an order vacating the default.

Defendant is ordered to file and serve the responsive pleading within 5 days, or no later than 7/13/26.

The Case Management Conference and Order to Show Cause Re: Imposition of Sanctions against Plaintiff’s Counsel for Failure to File Proof of Service and Enter Default are continued to September 14, 2026, at 8:30 a.m. Parties are to file Case Management Statements no later than 15 days prior to the hearing date.

Counsel for Defendant is to give notice within two (2) court days.